

Ref No.: BD-CW-SAMCO-ACE-LET-STR-053

To: ACE Project Management | Moharram Bakhoun

Attention: Eng. Abdulaziz Mohamed (Project Manager)

Project Name: The Big Business District.

Contract/Package: Construction Works.

Subject: Regarding Reinforcement Steel Order No. (2), Supply Delay and Contractor's Entitlement.



24-February-2026

Dear Sir,

With reference to our letter No. (BD-CW-SAMCO-ACE-LET-STR-025) concerning Reinforcement Steel Order No. (2), and further to our previous correspondences regarding delays in reinforcement steel supply, we would like to clarify the following:

First: Status of Supply and Resulting Impact

The quantities supplied to date do not correspond with the actual site execution requirements sent before, nor do they align with the ongoing sequence of works. This has resulted in disruption to the structural activities and has required re-sequencing of certain operations in order to maintain continuity of works.

Second: Contractor's Mitigation Measures

Due to the delay in supply beyond the contractual timeframe, and in order to avoid suspension or slowdown of works, the Contractor procured reinforcement steel from its own resources to ensure continuity of execution at site.

Such action was undertaken strictly as a mitigation measure in the interest of the Project and shall not be construed as a waiver of any contractual rights, nor as acceptance of responsibility for delays arising from irregular supply by the Employer or his suppliers.

Third: Adjustment of Remaining Quantities under Order No(2) .

Following site discussions and coordination with the Employer's Representative, it was agreed in principle to adjust the diameter distribution for the remaining portion of Order No. (2), while maintaining the overall order framework unchanged.

The proposed diameter distribution for the remaining quantities is as follows:

Diameter (mm)	T10	T12	T16	T18	T22	T25
Quantity (Ton)	50	110	130	36	29	0

Kindly review and formally approve the above distribution to enable immediate coordination for the completion of supply without further delay.

The Contractor reserves its right to submit a claim for the time impact resulting from the delay in reinforcement steel supply attributable to the Employer and/or its suppliers, without this constituting any waiver of its rights.

The Contractor's self-procurement was undertaken solely to ensure continuity of the Works, while reserving its right to seek certification and payment for the supplied materials.

Requests

1. Expedited supply of the outstanding quantities in line with site requirements.
2. Formal approval of the revised diameter distribution.
3. Certification and payment of materials procured by the Contractor.

We also confirm that no delay damages shall be applicable in this matter, as the causes of delay are beyond the Contractor's control and attributable to late supply.

The Contractor expressly reserves all rights to submit detailed claims for time and cost in accordance with the Contract.

Best regards,

Eng./ Mohammed Sami Mohammed
Project Director
SAMCO National Construction



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